

§ 659. Consideration of law allowing gender-affirming care. 1. It is the intent of the legislature that children or their parents should be able to obtain necessary medical care, including legally protected health activity, as defined by section 570.17 of the criminal procedure law.

2. A law that authorizes a child to be removed from their parent or guardian based on the parent or guardian allowing their child to engage in legally protected health activity, as defined by section 570.17 of the criminal procedure law, or based on such parent or guardian themselves engaging in legally protected health activity, is against the public policy of this state and shall not be enforced or applied in a case pending in a court in this state.

3. No court in this state shall admit or consider a finding of abuse, neglect or maltreatment based on the parent or guardian allowing their child to engage in legally protected health activity, as defined by section 570.17 of the criminal procedure law, or based on such parent or guardian themselves engaging in legally protected health activity, as evidence in any proceeding with respect to that parent or guardian and any of their children, unless such conduct would constitute abuse, neglect or maltreatment under the laws of this state.